

inclusion of specific electronic transmission logs where the court credits the attorney's sworn admission of fault. *Martin Potts & Associates, Inc. v. Corsair, LLC* (2016) 244 Cal.App.4th 432, 442-443.

Plaintiff contends that counsel's failure to verify the court docket from January until May 2026, combined with the submission of a second unfileable answer in May without verifying the default status, constitutes repeated, systemic office neglect rather than an excusable oversight. While Plaintiff's characterization of counsel's performance as inexcusable neglect is factually accurate, the distinction between "excusable" and "inexcusable" neglect is irrelevant under the mandatory provision of C.C.P. Section 473(b). Regardless of how unreasonable or inexcusable the attorney's neglect was, "so long as the attorney affidavit of fault shows the error was the fault of the attorney rather than the client." (*Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.)

Plaintiff argues that she should not be prejudiced by a second default because she already cooperated in late 2025 by stipulating to set aside Interstate Auto's first default, and Defendant thereafter missed its clear, court-ordered deadline. While the Court appreciates Plaintiff's prior cooperation and agrees that deadlines must be taken seriously, a party's statutory right to relief from default under C.C.P. Section 473(b) is not waived or exhausted by a prior stipulation.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2505680	CORIA VS RIVERSIDE INN	MOTION TO STRIKE

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CVRI2505680	CORIA VS RIVERSIDE INN	DEMURRER

Tentative Ruling: Defendants Riverside Inn and Value Hotels Corp.'s Demurrer as to the First, Third, and Fourth Causes of Action is sustained with leave to amend within 20 days.

Defendants' Motion to Strike the punitive damages allegations and prayer, and the request for attorneys' fees are granted.

A demurrer tests the legal sufficiency of the complaint. The court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The complaint is given a reasonable interpretation and read as a whole. (*Id.*) The question is whether the pleading states facts sufficient to constitute a cause of action. (*Id.*; *Aubry v. Tri-City Hosp. Dist.* (1992) 2 Cal.4th 962, 967.) Leave to amend should be granted if there is a reasonable possibility that any defect can be cured; the burden of demonstrating such a possibility rests on the plaintiff. (*Blank, supra*, 39 Cal.3d at 318; *Aubry, supra*, 2 Cal.4th at 967.)

First Cause of Action – Battery

“A battery is any intentional, unlawful and harmful contact by one person with the person of another.” (*Ashcraft v. King* (1991) 228 Cal.App.3d 604, 611.) “A harmful contact, intentionally done is the essence of a battery.” (*Id.*) “A contact is ‘unlawful’ if it is unconsented to.” (*Id.* [internal quotation omitted].) “[T]he element of intent is satisfied if the evidence shows defendant acted with ‘willful disregard’ of the plaintiff’s rights,” but that formulation presupposes an affirmative, deliberate act by the defendant that exceeds the plaintiff’s consent. (*Id.* at 613.)

Plaintiffs allege that Defendants failed to inspect, warn, or eradicate a known bedbug infestation and instructed staff not to inspect for bedbugs. (See FAC ¶¶ 24–30, 37, 39.) These allegations describe omissions and management decisions, not an intentional touching by any Defendant. *Ashcraft*’s “willful disregard” theory contemplates a deliberate affirmative act—*i.e.*, a surgeon exceeding the scope of a conditional consent—not passive nonfeasance that permits an insect to bite a guest. (*Ashcraft, supra*, 228 Cal.App.3d at 613.) Because Plaintiffs plead no intentional, harmful contact by a Defendant with Plaintiffs’ persons, the first cause of action does not state facts sufficient to constitute a battery. The claim, as pleaded, sounds in negligence, which is separately pleaded in the second cause of action.

Third Cause of Action – IIED

A cause of action for IIED requires: (1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct. (*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050.) A defendant’s conduct is outrageous when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. (*Id.*) Liability does not extend to mere insults, indignities, threats, annoyances, petty oppressions, or other trivialities. (*Id.* at 1051.)

The defendant’s conduct must also be “directed at the plaintiff, or occur in the presence of a plaintiff of whom the defendant is aware”; where reckless disregard is the theory of recovery, the defendant must have acted with awareness of the plaintiff and reckless disregard of the probability that its conduct would cause severe emotional distress to that plaintiff. (*Christensen v. Sup. Ct.* (1991) 54 Cal.3d 868, 903.) Severe emotional distress means emotional distress of such substantial quality or enduring quality that no reasonable person in civilized society should be expected to endure it. (*Hughes, supra*, 46 Cal.4th at 1051.)

Plaintiffs allege that Defendants rented a room they knew or should have known was infested, refused a refund, and directed Plaintiffs to leave when they complained. (FAC ¶¶ 18–19, 24–30.) Even taken as true, a hotelier’s failure to warn of, or promptly remedy, a bedbug infestation, coupled with a poor customer service response, is not conduct that “exceed[s] all bounds of that usually tolerated in a civilized community.” (*Id.* at 1050.) The conduct alleged was not directed at these Plaintiffs individually but was generalized conduct that would have affected any guest assigned to that room, and Plaintiffs do not allege that Defendants acted with awareness of Plaintiffs and reckless disregard of a probability that their conduct would cause these Plaintiffs severe emotional distress. (*Christensen, supra*, 54 Cal.3d at 903.) Plaintiffs also fail to plead

severe distress of the quality *Hughes* requires: they checked out the same day and describe general emotional harm, not distress “that no reasonable person . . . should be expected to endure.” (*Hughes, supra*, 46 Cal.4th at 1051.) The third cause of action is insufficient.

Fourth Cause of Action – Fraudulent Concealment

The elements of fraud are: (1) misrepresentation, including concealment or nondisclosure; (2) knowledge of falsity; (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Lazar v. Sup. Ct.* (1996) 12 Cal.4th 631, 638.) “In California, fraud must be pled with specificity; general and conclusory allegations do not suffice.” (*Id.* at 645.) The particularity requirement demands facts showing “how, when, where, to whom, and by what means the representations were tendered.” (*Id.* [internal quotation omitted].) Where the defendant is a corporation, the plaintiff must “allege the names of the persons who made the allegedly fraudulent representations, their authority to speak, to whom they spoke, what they said or wrote, and when it was said or written.” (*Id.* [internal quotation omitted].)

Plaintiffs allege that Defendants had knowledge of prior bedbug infestations through unspecified guest complaints and online reviews and concealed the infestation from Plaintiffs. (FAC ¶¶ 24–30, 45.) These allegations identify no particular person who concealed material information, no date or time when a duty to speak arose and was breached, no specific communication with Plaintiffs in which the infestation was concealed, and no identified reviews or complaints. The pleading rests on generalized corporate knowledge and generalized concealment, which is exactly what *Lazar’s* particularity rule forbids. (*Lazar, supra*, 12 Cal.4th at 645.) As pleaded, the fourth cause of action fails.

MOTION TO STRIKE

A court may, upon motion or on its own, strike out any irrelevant, false, or improper matter inserted in any pleading, or strike any pleading or portion thereof not drawn in conformity with California law. (CCP § 436.) Punitive damages allegations and prayers for relief that are not supported by properly pleaded facts are subject to being stricken as improper matter. (*Turman v. Turning Point of Cent. Cal. Inc.* (2010) 191 Cal.App.4th 53, 63.) Like a demurrer, a motion to strike accepts as true all material facts properly pleaded, but not conclusions of fact or law. (*Clauson v. Sup. Ct.* (1998) 67 Cal.App.4th 1253, 1255.)

Punitive Damages

Punitive damages are recoverable only where the plaintiff proves by clear and convincing evidence that the defendant acted with “oppression, fraud, or malice.” (Civ. Code § 3294.) “Malice” means conduct intended to cause injury, or “despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (*Id.*) “Oppression” means “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.” (*Id.*) “Fraud” means “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (*Id.*) Under the 1987 amendments to section 3294, the “despicable” component is a “new

substantive limitation” on punitive damages that requires conduct that is “base,” “vile,” or “contemptible,” more than a merely “willful and conscious disregard” of another’s interests. (*Coll. Hosp., Inc. v. Sup. Ct.* (1994) 8 Cal.4th 704, 725.) Where the defendant is a corporation, the oppression, fraud, or malice, or the advance knowledge, conscious disregard, authorization, or ratification, must be “on the part of an officer, director, or managing agent of the corporation.” (Civ. Code § 3294.)

Plaintiffs allege that Defendants knew of prior bedbug infestations at the hotel and in Plaintiffs’ assigned room, rented Room 206 anyway, instructed housekeeping not to change bed skirts or inspect for bedbugs, and failed to warn or remedy the condition. (FAC ¶¶ 24–30, 37, 39, 45.) Even accepted as true, these allegations describe negligence, or at most a conscious disregard of a known safety risk, but not the “despicable” quality section 3294 now requires. (*College Hosp., supra*, 8 Cal.4th at 725.) The FAC identifies no specific complaint, review, date, pest control record, or communication that would show actual awareness of an active infestation in Room 206 on the night in question, and no facts describing conduct that is “base, vile, or contemptible.” (*Id.*) Plaintiffs’ reliance on *Penner v. Falk* (1984) 153 Cal.App.3d 858 and its pre-1987 antecedents does not alter the analysis. Those decisions apply the “conscious disregard” standard as it existed before section 3294 was amended to require conduct that is “despicable” and proof by clear and convincing evidence. The claim also fails at section 3294(b). Plaintiffs allege in paragraph 46 that an officer, director, or managing agent authorized or ratified the conduct, but that allegation merely tracks the statutory language without identifying any officer, director, or managing agent by name, title, or corporate role, and without pleading facts showing what that person knew, when they knew it, or how they authorized or ratified the conduct. (See FAC ¶ 46; Civ. Code § 3294.) Housekeeping staff and unnamed “management” do not, as a matter of law, satisfy the corporate actor requirement. (See *White v. Ultramar, Inc.* (1999) 21 Cal.4th 563, 577 [managing agent must exercise substantial discretionary authority over decisions that ultimately determine corporate policy].)

Accordingly, the Court strikes as to punitive damages and strike: Item 2 of the Prayer for Relief; paragraphs 46, 48, 51, 55, 63, 80, 87, 91, and 111 in their entirety; and the characterizing language “deliberately and recklessly,” “intentional, deliberate, and reckless,” “willful,” “egregious,” and “extreme indifference” (and similar terms) appearing in paragraphs 30, 33, 41, 42, 52, 53, 54, 56, 57, 59, 83, 95, 96, and 137.

Attorneys’ Fees

Under the American Rule, each party bears its own attorneys’ fees “[e]xcept as attorney’s fees are specifically provided for by statute” or by agreement of the parties. (CCP § 1021.) A prayer for attorneys’ fees unsupported by any pleaded contractual or statutory basis is improper matter subject to being stricken. (CCP § 436.)

The FAC prays for attorneys’ fees but pleads no contract entitling Plaintiffs to fees and no statute authorizing a fee award for the causes of action alleged. Plaintiffs’ opposition to the motion to strike does not address attorneys’ fees or identify any statutory or contractual basis for the request. Because section 1021 makes each side responsible for its own fees absent an authorizing statute or agreement, and none is pleaded, the request for attorneys’ fees should be stricken.